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June 7, 2022

Honorable Erin M. Wirth  
Chief Administrative Law Judge  
Federal Maritime Commission  
800 North Capitol Street, N.W.  
Washington, D.C. 20573

**Re: *International Longshoremen's Association v. Gateway Terminals, LLC; Charleston Stevedoring Company, LLC; Ports America Florida, Inc.; Ceres Marine Terminals, Inc.; and SSA Atlantic, LLC, FMC Docket No. 22-12***

Dear Chief Administrative Law Judge Wirth:

The undersigned firm represents Complainant International Longshoremen's Association ("ILA") in the above-referenced proceeding. Kindly accept this letter as the ILA's brief opposition to the Respondents' motion to dismiss, dated May 9, 2022.

On June 3, 2022, the ILA filed a consent motion for leave to file an amended verified complaint. The ILA's amended verified complaint alleges additional facts to establish personal jurisdiction over the respondents and clarifies the ILA's claims under the Shipping Act. Thus, the amended verified complaint resolves any purported deficiencies raised in the Respondents' motion to dismiss.

Should the ILA's motion to amend be granted, then the ILA's original verified complaint, and the Respondents' motion to dismiss that complaint, will be rendered moot. Even in the event that the motion to amend were not allowed, the factual allegations in the amended complaint, verified under penalty of perjury, would still constitute competent evidence to show the existence of personal jurisdiction over the Respondents. In that regard, the ILA incorporates by reference the proposed first amended verified complaint into this opposition to the motion to dismiss. Most notably, the ILA's amended verified complaint alleges specific facts showing that the Commission has jurisdiction over the Respondents as "marine terminal operators," as defined at 46 U.S.C. § 40102(15).

The ILA's original complaint's relied on the good-faith, but mistaken, belief that the Agreement No. 201293 was effective, thereby establishing the Commission's jurisdiction over the Respondents. The ILA, however, learned for the first time from Respondents' motion to dismiss that Agreement No. 201293 had been withdrawn.

The Respondents based their jurisdictional argument entirely upon a non-binding opinion letter issued by the Office of the General Counsel ("OGC"). In that letter, the OGC opined that, as of the August 6, 2019, Respondents SSA, Ports America, and Ceres did not meet the definition of "marine terminal operators" in the Ports of Charleston and Savannah. Any evidence that the OGC may have relied on in reaching this opinion is not in the record in this proceeding, and Respondents did not submit any such evidence or affidavits with their motion.

Moreover, the opinion letter does not even address the jurisdictional status of two of the Respondents. SSA, Ports America, and Ceres no longer operate as individual entities at the container terminals in these two ports; rather, they operate through the joint-ventures Gateway and Charleston Stevedoring Company in Savannah and Charleston, respectively. The OGC's opinion letter, which is explicitly "non-binding" on the Commission, does not address whether, as they are currently today operating at these two Southeastern ports, Gateway or Charleston Stevedoring Company (or SSA, Ports American, and Ceres, as operating through Gateway and CSC) are marine terminal operators within the meaning of the Shipping Act. Accordingly, without any actual evidence, the non-binding opinion letter is simply not sufficient basis to remove from the Commission's jurisdiction the terminal operators of the two largest ports in the Southeast.

On the other hand, the ILA's amended complaint, verified under penalty of perjury, is competent evidence that demonstrates the Commission's jurisdiction over the Respondents. Therefore, the Respondents motion to dismiss should be denied.

I certify that I have emailed a copy of this letter to all counsel of record.

Respectfully yours,

/s/ John P. Sheridan  
John P. Sheridan

cc: All counsel of record

JPS/dk